ULearn Limited

EMPLOYMENT CONTRACT

&

STATEMENT OF TERMS AND CONDITIONS OF EMPLOYMENT

Temporary Contract of Employment

EMPLOYER: ULearn Limited

EMPLOYEE: The person whose name and address is specified in Part 1 of the Appendix to this contract.

This statement is given to you as a record of the terms and conditions of your employment with ULearn Limited and in compliance with the Terms of Employment (Information) Act 1994-2001.

All amendments to your terms and conditions of employment will be confirmed by ULearn Limited in writing and unless so confirmed will not be considered part of your employment contract.

You agree and acknowledge that you are entitled to seek your own independent legal advice and that you have fully read and fully understand the effect and implications of this contract of employment and every part thereof. You further agree and acknowledge that you are entering into this contract of employment without any coercion of any description.

1. Commencement and Duration of Employment

1.1 Your employment with ULearn Limited will begin on the date specified in Part 2 of the Appendix to this contract. This is a Temporary Employment Contract which will run on a "week-to-week" basis. It is agreed that the provisions of the Unfair Dismissals Act 1977 - 2007 will apply to this contract in the event of termination.

1.2 Your employment will be on a probationary basis for an initial period of 6 months from the date of commencement of employment. ULearn Limited may extend this probationary period but in any case, it will not exceed 10 months in total. You may be terminated at any time during the assigned probationary period by ULearn Limited, giving you notice periods as outlined in this document.

1.3 Your performance will be reviewed during your probationary period. If you complete the probationary period to the satisfaction of management you will be reviewed in accordance with Company Policy in force from time to time.

2. Function and Duties

2.1 You will be employed in the position/function specified in Part 3 of the Appendix. In that capacity you will be expected to perform all acts, duties and functions as ULearn Limited may direct. You will be expected to comply with such directions as are linked to your position/function and considered by ULearn Limited to be reasonably consistent with such a position/function.

2.2 You will observe and comply with all lawful instructions, rules, regulations and policies confirmed to you from time to time by ULearn Limited.

2.3 During the course of your employment, as the business of ULearn Limited changes and develops, it may be necessary to expand your duties within the general scope of your position or to change your function. Such a change may occur to suit market demands, manpower availability, increased competitiveness etc. and it is a condition of employment that you agree to be totally flexible with regards to your work.

2.4 In order to meet the requirements of ULearn Limited business and its reasonable operational needs, you may be required to carry out any other duties in addition to or instead of those to which you have been assigned. However, you will not be required to carry out duties which you cannot reasonably perform.

2.5 Teachers are required to complete all Lesson Planning in preparation for classes. This would be done in addition to normal working time and has already been taken into account in the employee's rate of pay. All duties directly related to the role of teaching e.g. lesson planning, must be completed in a manner befitting the role of English Teacher at ULearn.

3. Place of Work

3.1 Your place of work at the commencement of this contract will be at the location specified in Part 4 of the Appendix. However, this may change from time to time and you may be required to attend at any location

linked to the organisation, in keeping with the demands of your job and/or the changing needs of the business. You will be given as much notice as possible where the company asks you to travel to another site.

3.2 During your employment you must devote your time, attention and skills to the business of the company and you must use your best endeavours to promote the interests, business and welfare of the company. You will not during your employment engage in work, employment, outside relationships, or dealings with any of the company's customers or competitors which could be injurious to ULearn.

4. Hours of Work

4.1 Except and to such extent as may be otherwise mutually agreed or specified in Part 5 of the Appendix your normal working hours will be up to 39 hours per week Monday to Friday. The company reserves the right to determine the hours/days you work or alternatively, to change these working hours. You will receive as much notice as is reasonably possible prior to any change.

Your rest periods will be in accordance with the Organisation of Working Time Act, 1997 and will be agreed with your Manager in advance.

4.2 From time to time, based on ULearn Limited business needs, you may be requested to work hours in addition to the normal working hours, and your co-operation in this regard will be appreciated. Where possible, any such requirement will be notified to you in advance by your immediate Manager/Supervisor.

4.3 You will be entitled to additional remuneration for any hours worked in excess of normal hours per week. This will usually be paid at the basic rate. Please note that Lesson Planning is not considered as part of working time.

5. Remuneration, Benefits and Deductions

5.1 Your basic pay shall be at the rate specified in your interview and in Part 6 of the Appendix. Pay will be pro rata for lesser periods worked. Your salary will be payable monthly (Pay Reference Period), in arrears, by cheque / credit transfer to your bank account, and such payment arrangements shall remain in force until otherwise mutually agreed in writing.

In accordance with Section 23 (1) of the National Minimum Wage Act 2000, you may request a written statement of your average hourly rate of pay for any pay reference period falling within the previous 12 months.

5.2 ULearn Limited will deduct all amounts from you any remuneration payable to you, which it is authorised to deduct or required by law to deduct and remit to the Revenue authorities.

5.3 ULearn Limited shall be entitled to deduct from your remuneration any monies owed by you to ULearn Limited including but not limited to any outstanding loans, advances, course fees, the cost of repairing or recovering any damage or loss of Company property caused by you and any excess holiday pay.

5.4 **Pension Scheme** - ULearn Limited will provide you with information to join a PRSA scheme with our chosen provider. Further details can be obtained from your Manager.

5.5 **Retirement Age** - The retirement age is the date of your sixty-fifth birthday. This date may be extended with the approval of the Management.

6. Holidays

6.1 Your annual leave entitlement shall be the number of working days specified in Part 7 of the Appendix.

6.2 Annual leave and statutory public holiday entitlements will be granted in accordance with Part III of the Organisation of Working Time Act 1997.

6.3 Holiday leave may be taken at such time or times as ULearn Limited shall consider most convenient having regard to its business requirements and the wishes of the employee. The company Holiday year runs from 1st January to 31st December.

Further information on annual leave and public holidays can be found within your Employee Handbook.

7. Health & Safety

It is the policy of ULearn Limited to operate and maintain a safe and healthy working environment and to comply with the statutory requirements of the Safety, Health and Welfare at Work Act 2005.

A copy of ULearn Limited Safety Statement is available for your information on the commencement of your employment and on an annual basis thereafter. You are expected to familiarise yourself with this document and it is your duty as an employee to comply with its guidelines and directions. You will be required to confirm that you have familiarised yourself with our Safety Statement by signing and returning the Acknowledgement Form at the front of the document.

In signing this contract of employment, you acknowledge that you have undertaken the proper lifting courses and are fully competent to discharge your duties in a safe manner. You further acknowledge that you are aware of all Health & Safety legislation and requirements, including Fire Safety Regulations, lifting procedures and all other procedures, to enable you to provide or complete your work in a safe manner. If you have not received any of the above training, you must highlight this issue in your interview.

If you are unsure of any aspect of the Safety, Health and Welfare at Work Act 2005 or what is required of you from a Health & Safety point of view, this should immediately be brought to the attention of the employer, so that further information and/or training can be provided.

A copy of ULearn Limited Health and Safety Policy Statement is contained in the Employee Handbook.

8. Absence

8.1 If you are absent from work due to sickness, or any other reason, your immediate Supervisor / Manager must be notified as early as possible. In any event, they should be notified at least 1hour in advance of your start time on the first day of absence. Text messages, emails and voicemails are not acceptable methods for communicating your absence.

8.2 ULearn Limited operates within the legal requirements of the Sick Leave Act of 2022.

8.3 You may be entitled to Social Welfare Benefit, in line with Social Welfare eligibility rules, while absent due to illness. Any Social Welfare payments received should be retained by the employee as this will be the only remuneration or compensation received.

8.4 If you are absent due to sickness or incapacity for two or more consecutive days, you must, at your own expense, furnish ULearn Limited with a certificate from a registered Medical Practitioner specifying the nature of your illness or incapacity and the likely duration of your absence. Certificates should be submitted on a weekly basis thereafter. On some occasions, the company may require you to submit a certificate after the first day.

8.5 Before returning to work, you may also be required to submit, at your own expense, a certificate from a registered Medical Practitioner confirming that you are fully fit to resume your normal duties.

8.6 ULearn Limited reserves the right to request that you attend a doctor nominated by the company at any time during sickness or incapacity.

8.7 Long term absence or sick leave may put the employment at risk and be construed as Incapability; this may result in termination of employment. Therefore you will be deemed to have frustrated your contract of employment by reason of incapacity.

For further information on absenteeism, please consult your Employee Handbook.

9. Lay-off and / or short time

ULearn Limited reserves the right to lay you off from work or reduce your working hours, where, through circumstances beyond its control, it is unable to maintain you in employment. You will receive as much notice as is reasonably possible prior to such lay-off or short time. You will not be paid during the lay-off period. You will be paid only in respect of hours actually worked during period of short time.

10. Discipline

10.1 Employees are expected to adhere to ULearn Limited standards of conduct, capability and performance as notified by ULearn Limited to its employees. Employees will be subject to disciplinary action up to and including dismissal if they fail to meet ULearn Limited agreed standards.

Further information on the standards of conduct, capability and performance can be found in your Employee Handbook.

10.2 Conduct, which does not warrant summary dismissal, can result in a verbal warning and/or written warning(s).

10.3 Where verbal and/or written warning(s) is/are not heeded, the employee will be subject to dismissal either with or without notice or payment in lieu of notice, as ULearn Limited considers appropriate.

Full details of the relevant and appropriate disciplinary procedure(s) as well as the Grievance procedure adhered to by ULearn Limited can be found in your Employee Handbook.

11. Termination of Employment

11.1 If your Manager should determine that your services are unsatisfactory, the appointment may be terminated in accordance with existing employment legislation.

(a) Save and insofar as the parties agree that the Unfair Dismissals Act 1977 -2007 shall apply to this contract: or

(b) Any other notice period agreed by you and ULearn Limited in writing. For business purposes, ULearn Limited normally requests a minimum of 1 months' notice, however, if possible, a greater notice period would be desirable. Further information on notice periods can be found in your Employee Handbook.

11.2 You will be entitled to receive the appropriate notice period, as set down in the Minimum Notice and Terms of Employment Act 1973-2001. As per the Act, the minimum period of notice to be given depends on the length of service of the employee, as follows:

Less than 13 weeks	None
13 weeks -2 years	1 week
2 -5 years	2 weeks
5 – 10 years	4 weeks
10 – 15 years	6 weeks
15 years plus	8 weeks

11.3 ULearn Limited reserves the right to give you pay in lieu of any period of notice, which you are required to give to or are entitled to receive from ULearn Limited.

11.4 If you refuse to work all or any part of the notice period, you will forfeit any remuneration due to you, but unpaid, at or after the time the notice was given.

11.5 ULearn Limited shall be entitled to terminate your contract without notice or payment in lieu of notice if you are guilty of gross misconduct. Please consult your Employee Handbook for further information on what this category of misconduct entails.

11.6 ULearn Limited reserves the right to terminate your employment with the Company without notice or salary in lieu of notice and with immediate effect if you as an employee :

(i) Commit any serious breaches of the terms and conditions of this Contract of Employment.

(ii) Commit any act or are guilty of any conduct, which in the reasonable

opinion of management brings you or ULearn Limited into serious disrepute.

(iii) Commit an act of serious dishonesty (e.g. steal cash and/or property from the employer, colleagues or customers) or falsify documents. This will most likely result in prosecution.

(iv) Are convicted of any serious criminal offence or had the Probationary Act applied (excluding an offence under the Road Traffic Legislation in Ireland or elsewhere for which you are not sentenced to any term of imprisonment or suspended).

(v) Commit an act of theft whether related to ULearn Limited and its business or otherwise.

12. References

It is a condition precedent of this offer of employment that ULearn Limited receives satisfactory references and evidence of your qualifications. ULearn Limited reserves the right to request references from previous employers. These references must be on file prior to your commencing employment with ULearn Limited.

13. Return of Property

Upon termination of your employment for whatever reason, you will be required to return without delay to ULearn Limited all its property of every nature and description including but not limited to: personal computers, software, manuals, identity cards and all other items belonging to or issued to you by or on behalf of ULearn Limited in the course of or in connection with your work.

14. Medical Examination

You may be required, at any time during your employment with ULearn Limited, to submit to one or more medical examinations by a registered medical practitioner nominated by ULearn Limited.

15. Search

ULearn Limited reserves the right to search your person, vehicle, and property while on or departing from ULearn Limited premises. Further information can be found in your Employee Handbook.

16. Confidential Information

All information, which is not in the public domain and has been acquired in the course of your duties and employment with ULearn Limited, must be treated as confidential both during and after termination of your employment

17. Good Faith

Employees should inform the employer if they are pregnant and of any illnesses or injuries that they have, had in the past, or suspect they may have, which could be considered relevant to your employment and/or the tasks you will be required to carry out on a daily basis. In all cases, the employer should be informed as soon as possible.

18. Permit to Work

It is a condition precedent of this offer of employment that ULearn Limited receives satisfactory evidence of your permission to work in Ireland. For example, you may need

to provide some or all of the following documents:

Current Passport

Garda National Immigration Bureau (GNIB) Registration Card

Original employment permit

If you are likely to have difficulty in producing the documents as specified above please let the Company know as soon as possible.

19. Entire Agreement

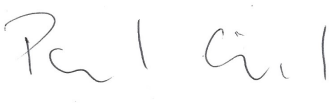
This contract represents the entire agreement between the parties and supersedes any and all previous agreements, understandings and correspondence concerning your employment with ULearn Limited. Any additional or amending provisions shall be by agreement between you and your Manager and will be signed by each party, and will be appended to this document

20. Acknowledgement and Agreement

If you are willing to accept employment with ULearn Limited on the terms and conditions outlined above, you should sign the form of acknowledgement and agreement at the end of this statement and return the complete contract and signed Non-Disclosure Agreement to the undersigned.

Signed for and on behalf of ULearn Limited

Name:



Paul Gill

Title: Director of Studies

Date: 19 Jul 2026

Acknowledgement and Agreement:

I acknowledge that I have received, read and understood the terms and conditions of my employment as set out above. I hereby accept ULearn Limited offer of employment on the terms and conditions set out above.

Name: Robbie Tomlinson

Employee Signature: Robbie Tomlinson **Date**: 19 Jul 2026

APPENDIX

Part I

Employee Name: Robbie Tomlinson

Employee Address: 30 Priory west

Part 2

Commencement Date: 20 Jul 2026

Part 3

Title: Teacher

Manager's Name & Title: Paul Gill

Part 4

Place of Work: ULearn School Dublin

Address: 13 Harcourt Street, Dublin 2 DO2RK31

The role is primarily based at one or all of the office space above however the Company is within its rights to request a change to your working location should the requirement arise. This does not affect your statutory rights or your Right to Request remote work. Though the offer or requirement to use computers, phones or other tech supplied by ULearn, it is agreed herewith that the Company is not obliged to supply such technology for any WFH use should it arise.

Part 5

Contract Type: Contract

Normal Working Hours: 30

Part 6

Basic Rate of Pay: EUR 19.00

Part 7

Annual Holidays

Annual leave entitlement is 8% of hours worked subject to a maximum of 20 days per annum. Holiday pay will be based on your current rate of remuneration. Arrangements for availing of annual leave must be made with the agreement of your Supervisor / Manager to ensure that the

operation of ULearn Limited and its service to its customers is not adversely affected.

You will be required to give at least 4 weeks' notice of your intention to take 2 consecutive weeks' holidays. Holidays will be allocated on a first come, first served basis, with the agreement of the employer.

The annual leave period is from January to December, and all annual leave should be taken within this period. 2 weeks of annual leave is assigned at the Christmas Period each year, which employees will be required to retain annual leave for…

Public Holidays

Further to your annual leave entitlement, there are 9 Public Holidays throughout the year, from which you may qualify to benefit. They are as follows: New Years' Day, St Patrick's Day, Easter Monday, May Bank Holiday, June Bank Holiday, August Bank Holiday, October Bank Holiday, Christmas Day, Stephens' Day. Please note that Good Friday is not a Public Holiday.

Your entitlement to benefit from a Public Holiday shall be in accordance with the Organisation of Working Time Act, 1997. The Act states that an employee is entitled to one of the following, as decided by the employer:

(a) a paid day off on that day;

(b) a paid day off within a month;

(c) an extra day's annual leave, or;

(d) an extra day's pay.

Please note that you will only be entitled to benefit from a Public Holiday if you have worked a total of 40 hours or more in the 5 weeks leading up to the Public Holiday.

Additional/ Amending Provisions (if any): References were or will be requested and the checking of these may still be in progress. The Company reserves the right to revoke the terms of this contract and suspend or abort the employment at any time should the situation require it inside the terms of your probation (see above).

ULearn Limited is an equal opportunity employer and does not discriminate against individuals on the basis of gender, age, race, colour, nationality, ethnic or national origin, religion, marital status, family status, sexual orientation, disability or membership of the travelling community.

Date of Issue of contract: 19 Jul 2026